

CPC Framework & Res Judicata

Subject: Civil Procedure & SRA | Edition: 2026 Comprehensive Study Module

Statutory Scope: Sec 11: Conditions for Res Judicata & Constructive Res Judicata (Daryao 1961), Order 39 R 1-2: Triple Test for Injunctions & E

I. OVERVIEW & STATUTORY FOUNDATION

Comprehensive analysis of Section 11 Res Judicata, Order 39 Injunctions, Order 7 Rule 11
Plaint Rejection, and Inherent Powers.

II. KEY SECTIONS & REGULATORY FRAMEWORK

- â€¢ Sec 11: Conditions for Res Judicata & Constructive Res Judicata (Daryao 1961)
- â€¢ Order 39 R 1-2: Triple Test for Injunctions & Ex-Parte Standards (Morgan Stanley 1994)
- â€¢ Order 7 Rule 11: Rejection of Plaint on Bar of Law & Cause of Action

III. CORE PRECEDENTS & ADJUDICATORY PRINCIPLES

- â€¢ Daryao v. State of U.P. (1961) - Res Judicata in Writ Petitions
- â€¢ Asian Resurfacing Overruled (2024) - No automatic 6-month stay vacation

IV. EXAMINATION CHECKLIST & ADVOCACY APPLICATION

- â€¢ Essential definitions, mandatory procedural steps, and jurisdictional thresholds.